



human resources development under Section 19 of the Prevention of Corruption Act, 1988. He rejected it saying: "The President is not the competent authority to remove a minister of the Union government (without the advice of the prime minister)". If the President on his own could not constitutionally sanction the prosecution of a Union minister, could a governor on his own sanction the prosecution of a chief minister? This is still a grey area in the law, and its resolution must await a more definitive pronouncement by the highest court.

It is submitted that the Centrist slant in Union-state decision-making has been inspired not by the plain language of the constitutional provisions, but by an overriding concern for preserving the unity of India—at any cost, even at the cost of a truly federal India. No chronicler of the Supreme Court's decisions on Centre-state disputes can fail to notice that it has not decided a single major issue directly arising between the Centre and a state in favour of the state. Even where the claims have arisen indirectly, the occasions when power to the Centre has been denied vis-à-vis the states have been few. It would be unfair to regard this as a criticism, it is not meant to be. The stark fact is that the Justices who have sat in the highest court have believed that India needs a "strong Centre". This belief has been reflected in all its decisions since 1950.

What about the future? In S.R. Bommai (1994), a bench of nine judges of the Supreme Court held that secularism was a basic feature of the Constitution. But the majority then went on to say that federalism too was a basic feature. In this, I believe, the Court went too far. It means that there could be no amendment in the existing Articles of the Constitution to disturb the type of federalism originally fashioned by the founding fathers: which takes one back to the now-discredited American constitutional doctrine of 'Original Intent.' Professor Wheare, a noted constitutional expert, has described the Constitution of India as "a Unitary Constitution with federal features". To have characterised a concept so deliberately left undefined and amorphous, and label it a "basic feature" was to stultify constitutional development: Constitution-making is not a one-time exercise; it is a continuous process, it keeps getting constantly enriched by the experience of the nation.

Financial dependency on the Centre has so far been one of the main disincentives to the working of a true federalism in India. But this is fast changing. Growing investment opportunities from abroad and the tapping of global markets

are not to the advantage of the Union alone. States find that they too can directly embark on joint ventures with multinational foreign corporations and find a new and much-needed resource for raising of funds on their own. Greater financial independence will necessarily herald less political dependence. And this will in turn get reflected, albeit slowly, in views of state representatives in Parliament.

In a recent book on American law, Professor Lawrence Friedman records that in the United States, there is nostalgia for an "older" federalism, a federalism tilted more strongly towards the states: what he calls the "New Federalism". I

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share this sentiment. As I see it, the progress of constitutionalism in this great country is in a "New Federalism"—more equal rights (financial and political) for the states than in the past. This is not how our Supreme Court has so far seen it, not even after five decades. It is time it did. The Union is now firmly cemented.

The prime need of the hour is new judicial thinking on the subject of Indian federalism. The concept of a strong and united India is praiseworthy, but somehow lacks credibility, when for more than 10 years now, governments at the Centre have not been strong but weak, minority governments formed by uneasy coalitions of diverse political parties professing disparate policies. The Union of a "strong Centre" and "weak" states conceived by the founding fathers has not worked. We must realise now in this 60th year of Independence that it is only strong, self-reliant states that will make a strong and united India. Rao's emotional appeal to the "brooding spirit" of the future may yet strike a responsive chord. Perhaps in our lifetime, and if not, at least in the lifetimes of our children. I believe that India—the India of our Constitution, the India of our dreams—will some day become, in the evocative words of Article 1 of the Constitution, a real Union of states; not remaining a mere Union of territories that are called 'states'.

TOWARDS AUTONOMY:
States are now directly embarking on joint ventures with MNCs



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